

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 1051 of 2010

Most. Aysha Siddika and others

----- The plaintiff-appellant-petitioners

=Versus=

Nizam Uddin Sikder and others

----- The defendant-respondent-opposite-parties

Mr. Md. Mostafa with

Mr. Md. Humayun Kabir Sikder, Advocates

----- For the petitioners.

Mr. Md. Delwar Hossain with

Mr. Toufiq Anwar Chowdhury, Advocates

----- For the opposite-parties

Heard on 05.02.2017, 06.02.2017 and

Judgment on 13.03.2017

At the instance of the present plaintiff-appellant-petitioners, Most. Aysha Siddika and others, this Rule has been issued calling upon the opposite-parties Nos.1-3 to show cause as to why the impugned judgment and decree dated 11.10.2009 complained of in the petition moved in Court today should not be set aside.

This Rule is directed against the judgment and decree dated 11.10.2009 passed by the learned Additional District Judge, Jhalakati in Title Appeal No.22 of 2004 dismissing the same and modifying the judgment and decree dated 25.01.2004 passed by the learned Joint District

Judge, 2nd Court, Jhalakati in Title Suit No.11 of 2003 decreeing the suit in part.

The relevant facts for disposal of the Rule, inter alia, are that the present petitioners as the plaintiffs filed the Title Suit No.35 of 1990 in the Court of the learned Subordinate Judge, Jhalakati for declaration of title in respect of schedule 'kha' land and also for partition in respect of schedule 'ka' land.

The plaint case is that the land measuring an area of 1.90 acres appertaining to C.S. khatian No.72, Mouja Goalkati, District-Jhalakati belonged to Mofezuddin Sikder and Ayen Ali Sikder in equal shares. Eyen died leaving behind his widow Azimunnessa and the said Mofezuddin as a brother. The said Azimunnessa settled 0.24 acres of land by giving a pattan in favour of the said Dolu Sikder who died leaving behind his father Mofezuddin and 2 sons Sobhan, Abdul Aziz and 2 daughters Sufiea and Jamila. The said Mofezuddin died leaving behind 3 sons, Khadem Hossain, Kobbat Ali and Rustom Ali and a daughter namely Rupban Bibi.

The plaint case also contains that the land measuring 1.36 acres in C.S. Khatian No.72 earlier belonged to Faizuddin and Hasonuddin in equal shares but for the default in payment of khajna to the original landlord (Zamindar) who filed the Rent Suit No.118 of 1915 against the said defaulters and obtained a decree and pursuant to the Rent Execution Case No.639 of 1918. The land was sold on auction on 22.11.1918 and the said

auction sale was confirmed on 05.01.1919 through the Court. The said auction purchaser settled the suit land in favour of Khadem Hossain, Kobbat Ali and Rustom Ali. A kabulyot was executed on 25.04.1928 (Exhibit-3) and the possession was delivered to them. The present plaintiff-petitioners as the successor have been paying rent to the Zamindar and thereafter to the Government after their death as the legal heirs and have been enjoying the suit land. The record of rights in S.A. and R.S. khatians have been published correctly but the said records have not been acted upon. On the basis of the wrong record the present defendants are taking advantage by claiming title upon the suit land.

The suit has been contested by the defendant Nos.1 and 3 by filing a written statements denying the statements made in the plaint and also contending that the plaintiffs have no right and title and possession in the suit land. It is further contended that the land measuring 1.90 acres in C.S. Khatian No.72 belong to one Ayen Ali Sikder and Mofej Ali Sikder. Ayen died leaving behind his widow Azimunnessa and brother Mofezuddin. Azimunnessa given a pattan for the land measuring .24 acres in favour of Dholu Sikder, son of Mofezuddin. Mofezuddin died leaving behind 4 sons Dholu, Khadem, Kobbat, Rustom and a daughter Rupjan Bibi. It is also contended that the land in C.S. Khatian No.73 originally belonged to Foyejuddin and Hossain Uddin in equal shares and Hossain Uddin died leaving behind a son Menaj Uddin who also died leaving one daughter

Zahura Bibi who also died leaving behind the present defendant-opposite-party Nos.1-5 as her the legal heirs. The defendant No.1 purchased .11 decimals of land from the defendant No.5 on 14.11.1988. This property of Khatian No.73 was never sold on auction.

After hearing the parties the learned trial Court dismissed the suit by his judgment and decree dated 11.09.1993. Being aggrieved the present opposite-parties as the appellants preferred the Title Appeal No.132 of 1993 in the Court of the learned District Judge, Jhalakati, which was heard by the learned Additional District Judge, Jhalakati who allowed the appeal on 24.05.1999 and thereby set aside the judgment and decree passed by the learned trial Court. Against the said judgment the Civil Revision No.3732 of 1999 was filed in the High Court Division, Supreme Court of Bangladesh and a Rule was issued. After hearing the parties the Rule was made absolute and setting aside the judgment of the appellate Court below and also sending the suit on remand to the trial Court for rehearing of the suit. On the basis of the above judgment passed by this Court the Suit No.35 of 1999 was restored and thereafter it was renumbered as the Title Suit No.11 of 2003.

In addition to the earlier documents and depositions P.W.1 Md. Shahalam was recalled and reexamined regarding the S.A. khatian No.305. The D.W.1 Nizamuddin was also recalled, reexamined. After hearing the parties the learned Joint District Judge, Jhalakati decreed the suit in part by

his judgment and decree dated 25.01.2004 by declaring the title and saham of the land measuring 1.14 acres in C.S. khatian No.72 in favour of the present plaintiff-petitioners. Being aggrieved the present plaintiff-petitioners preferred the Title Appeal No.22 of 2004 in the Court of the learned District Judge, which was heard by the learned Additional District Judge, Jhalakati on transfer who by his judgment and decree dated 11.10.2009 dismissed the appeal with modification by the impugned judgment and decree on the basis of the cross objection filed by the present defendant-opposite-party Nos.1 & 3. This revisional application has been filed under section 115(1) of the Code of Civil Procedure challenging the said judgment and decree passed by the learned appellate Court below and this Rule was issued thereupon.

Mr. Md. Mostafa, the learned Advocate, appearing with Mr. Tapan Kumar Chakraborty and Mr. Md. Humayum Kabir Sikder, the learned Advocates, submits that the learned Assistant Judge after proper appreciation of the evidence of P.W.1 and P.W.4 and relying upon the exhibits 2 and 7 found that Mofezuddin died leaving behind 3 sons and further found that the defendants could not prove that their father Dholu did not die during the life time of Mofizuddin but the learned appellate Court without reversing those findings allowed the cross objection of the defendants-respondents and thereby committed an error of law resulting in an error in the decision occasioning failure of justice.

He also submits that a portion of land of C.S. khatian No.73 has been recorded in S.A. khatian No.307 exhibit-ka(3) on the basis of the auction purchase in the name of the predecessor of the plaintiffs and D.W.1 admitted in cross that the name of original owner Foyezuddin and Hasanuddin were not recorded in S.A. khatian exhibit-Ka(3) and the facts clearly proves that the auction purchase has been acted upon but the learned appellate Court failed to consider this aspect of the case and thereby committed an error of law resulting in an error in the decision occasioning failure of justice.

The learned Advocate further submits that the learned appellate Court below committed an error of fact by finding that the present plaintiff-petitioners failed to submit any document regarding any kabulyot whereas the a kabulyot dated 25.04.1928 has been produced in the earlier and it has been exhibited Exhibit-3, as such, the appellate Court misread the evidence and came to a wrongful conclusion which is liable to be set aside and the Rule should be made absolute.

This Rule has been opposed by the present opposite-parties No.1 & 3.

Mr. Md. Delwar Hossain, the learned Advocate submits that the learned trial Court came to a wrongful conclusion by declaring title and saham upon the land measuring 1.14 acres without considering the evidence produced and adduced by the parties, however, the learned

appellate Court below came to a lawful conclusion after examining the document and deposition on behalf of the respective parties by allowing a saham for the present plaintiff-petitioners upon the land measuring .84 acres as the plaintiff failed to produce sufficient evidence to get land more than any entitlement or saham beyond the said measurement of land, but the present plaintiff-petitioners obtained the present Rule by misleading the Court as to the factual and legal aspects, therefore, the Rule is liable to be discharged.

The learned Advocate further submits that the main dispute between the parties are regarding the C.S. khatian No.72 in Mouza Goalkati, Jhalakati on a fact as to whether Dholu Sikder died before or after his father Mofizuddin Sikder, but the learned trial Court failed to consider this aspect on the basis of document, however, the learned appellate Court correctly considered that the present plaintiff-petitioners failed to prove its own case including the case regarding the death of Dholu Sikder by producing any document, as such the learned appellate Court below modified the judgment of the trial Court by allotting saham upon the land measuring .84 acre upon which the present defendant-opposite-parties admits the entitlements of the present plaintiff-petitioners. The learned Advocate also submits that the present plaintiff-petitioners claimed their entitlement on the basis of boynama, dokholnama and kabulyot but those documents are forged and created, therefore, those documents cannot give

any title upon the present plaintiff-petitioners. Therefore, the Rule should be discharged.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the revisional application filed under section 115(1) of the Code of Civil Procedure along with annexures therein, in particular, the impugned judgment passed by the learned appellate Court below and also considering the materials in the lower Court records, it appears to me that the present petitioners as the plaintiffs filed originally a suit being the Title Suit No.35 of 1990 and that suit came up to this Court by way of a revisional application being C.R., No.3732 of 1999 and a Rule was issued therein at the instance of the present defendant-opposite-parties in the said judgment. After hearing both the parties another bench of this Court sent the suit for retrial on the basis of the following findings:-

“ From the pleadings of both the parties, it appears that they disputed the genealogy and put forward their own genealogy. In the plaint, it was stated that Dhalu Sikder died leaving behind father, Mafizuddin and two sons, Abdus Sobhan and Abdul Aziz and two daughters, Sufia Khatun and Jamilla Khatun. On the other hand, the defendants in their written statement stated that Mafizuddin died leaving behind 4 sons. Dhalu Sikder, Khadem Hossain, Kobbat Ali and Rostum Ali and a daughter, Rupban Bibi. But this dispute as regards genealogy was not resolved by either of the Courts

below. Moreover, the findings of the Courts below as regards the auction sale are also not satisfactory and as such the findings that took place in 1915 cannot be sustained. It is to be noted here that mere ---- of auction is not sufficient unless it is proved that the auction sale was acted upon by actual delivery of possession. ”

On the basis of the above findings the Title Suit No.35 of 1999 restarted and renumbered as the Title Suit No.11 of 2003, wherein the P.W.1 Md. Shahalam and D.W.1 Nizamuddin were recalled and examined. On the basis of their depositions, the learned trial Court being the Subordinate Judge, Jhalakati decreed the suit by declaring title of the plaintiff-petitioners upon the land measuring 1.14 acres by allocating the saham of the said land. However, the learned trial Court failed to pass a preliminary decree as to the partition of the said measurement of land, but the learned appellate Court below disallow the appeal preferred by the plaintiff-petitioners, being aggrieved upon the given saham of 1.14 acres out of total land 3.02 in C.S. khatian Nos.72 & 73 by way of succession. However, the learned appellate Court modified the said judgment and allocated saham of land .84 acres.

From the above given conflicting findings of the Court as to the measurement of saham upon the suit land, there are some vital points to be decided by this Court which include as follows:

- (I) Rent Suit No.118 of 2015 arises from default of khajna. The jamindar and also the Land Execution Case No.629 of 1918 from the said suit and sale of the suit land on auction on 22.11.1918.
- (II) The matter of Muslim Shariea Ain of inheritance regarding the succession of property from Mofizuddin and Dholu Sikder.
- (III) The claiming of the present plaintiff-petitioners as to their entitlement and prayer for partition of the suit and legality.
- (IV) The findings of the Courts below regarding validity of boynanama, kabulyot dated 25.04.1928 (exhibit-3) and dokholnama deed.

In order to answer the above matters in dispute by and between the parties I have examined the exhibits and depositions given by the witnesses for the respective parties. Regarding the first matter as to the documents of auction boynanama, kabulyotnama as well as the rent case which are nearly 100 year old. The present plaintiff-petitioners filed those documents in order to show the genealogy for their inheritance of the suit land. After considering the documents exhibits 2, 3 and 6, I found that the land mentioned in the schedule of the land have been succeeded by both the plaintiff-petitioners as well as by the defendant-opposite-parties in two khatians being C.S. khatian Nos.72 & 73. I also found that in khatian Nos.73 of Mouza Goalkati the present opposite-parties adduced sufficient

evidence in their favour and the present plaintiff-petitioners could not proof their entitlement in khatian No.73 of Mouza Goalkati.

However, regarding the C.S. khatian No.72 of Mouza Goalkati, Jhalakati which the present plaintiff-petitioners mentioned in the plaint as schedule 'ka' which includes C.S. Dag Nos. 858, 871, 872, 873, 874 and 876 and the R.S. and S.A. Dag Nos.1003, 1008, 1042, 1011, 1031 land measuring 1.64 acres. The admitted possession between the parties as to the fact that the land in C.S. khatian number was originally owned by Mofizuddin Sikder and Ayen Ali Sikder, who died leaving behind their successor who are the present petitioners and the defendants. But there is a dispute between the parties as to the succession of Mofizuddin and his son Dholu Sikder.

The question arose whether Dholu succeeded any land from his father or not, because the plaintiff claimed that Dholu Sikder died before the death of his father Mofizuddin, on the ground that the record was published only in the name of 3 others sons of Mofizuddin namely Khadem, Kobbat and Rustom and another but Dholu Sikder was not included in the record of right. This matter has been dealt by the learned Courts below and the trial Court accepted that Dholu died prior to his father Mofizuddin, Therefore, Dholu could not inherit. On the other hand, the learned appellate Court below also examined this aspects and came to a conclusion that the plaintiff failed to prove that Dholu died prior to his

father Mofizuddin thus his successors (the present as the defendant-opposite-parity Nos.1 & 3) would inherit the property. I have carefully examined the case of the parties in particular the case of the present petitioners, because, under the evidence law the plaintiff has to prove its own case. I have also found that the plaintiff did not take sufficient steps as to the death of Dholu prior to his father Mofizuddin, which has been a vital matter to substantiate their claim. In view of the above the learned trial Court committed an error of law by considering that Dholu died prior to his father Mofizuddin, however, the learned appellate Court below examined the documents and came to a lawful conclusion to dismiss the appeal by modifying the measurement of land from 1.14 acres to 0.84 acres of land by way of allocating sahams. However, I am surprised to see the judgments of the trial Court who decreed the suit in part without passing any preliminary decree after considering a suit for partition suit. But the learned appellate Court below failed to pass the decree in a preliminary form by way of modifying the judgment and order of the trial Court.

In view of the above discussions and finding of the learned Courts below, I consider that, the learned trial Court came to a wrongful conclusion to decree the suit in part for the land measuring 1.14 acres out of total 3.02 in schedule 'ka' of the plaint on the basis of the following findings :-

“ত-ব উভয় প-ক্ষর স্বীকৃত ম-তই সা-বক ৭২ খতিয়া-নর জমি ম-ধ্য আয়নালী শিকদা-রর অংশ স্ত্রী আজমু-ন্নাছা প্রাপ্ত হইয়া উক্ত জমি অর্থাৎ ২৪ শতক জমি পাট্রামু-ল ধলু সিকদার বরাব-র হস্তান্তর ক-রন এবং বাদিপ-ক্ষর স্বীকৃত ম-তই এ ৩০৬ খতিয়ান অর্থাৎ সা-বক ৭২ খতিয়া-নর ২৬ শতাংশ জমি বাদি প-ক্ষর পূর্ববর্তী কোব্বাত আলী সিকদার ২৪-৩০ নং বিবাদিগ-ণর নিকট হস্তান্তর করিয়া-ছেন। উক্তরূপ অবস্থায় সা-বক ৭২নং খতিয়া-নর ধলু সিকদারের পত্তনীয় ২৪ শতক ও বাদিপক্ষের পূর্ববর্তী কোব্বাত আলি কর্তৃক হস্তান্তরিত ২৬ শতক মোট ৫০ শতক জমি বাদ সা-বক ৭২ খতিয়া-নর ১.১৪ শতক জমিতে বাদিপক্ষ মফেজউদ্দিনের ৩ পুত্র যথাএ-ম খা-দম হো-সন, কোব্বাত আলি ও রস্তম আলি এবং কন্যা রূপবান ওয়ারিশ হিসা-ব উক্ত সম্পত্তি বাবদ পৃথক ছাহাম পাই-ত পা-র বলিয়া আমি ম-ন করি।

যদি ও বিবাদীপক্ষ হই-ত দাবী করা হইয়া-ছ যে, সা-বক ৭৩ খতিয়ানের রেকর্ডীয় মালিক ফয়েজদ্দিন তাহার অংশ সহোদর ভ্রাতা হাচন উদ্দিন বরাবরে মৌখিক দান ক-র দখল বুঝাইয়াছেন। কিন্তু বিবাদীপক্ষ মৌখিক দা-নর বিষয়টি যুক্তিসংগত ভা-ব প্রমাণ কর-ত সমর্থ হয় নাই। ”

On the other hand, the learned appellate Court below came to a conclusion to dismiss the appeal and lawfully modifying the judgment and decree passed by the learned trial Court by allocating saham of .84 acres on the basis of the following findings:-

“বিজ্ঞ নিম্ন আদালত বাদী পক্ষ ১ একর ১৪ শতক জমি প্রাপ্ত হইয়াছে মর্মে যে সিদ্ধান্ত প্রদান করিয়া-ছেন উহা সঠিক ও আইনানুগ হয় নাই। ধলু সিকদার মফিজউদ্দিনের অংশ প্রাপ্ত হইয়াছে। ধলু সিকদার জীবমানে আয়নালী সিকদা-রর স্ত্রী আজমু-ন্নাছার নিকট হই-ত ২৪ শতক জমি পাট্রা মু-ল প্রাপ্ত হইয়া-ছ এবং ২৪-৩০ নং বিবাদী কোব্বাত আলীর নিকট হই-ত ২৬ শতক জমি প্রাপ্ত হইয়া-ছ। তদাবস্থায় বাদী পক্ষ সা-বক ৭২ খতিয়া-নর ১.৬৪ শতক জমি হই-ত উপ-রা-ল্লখিত ভা-ব বেচা বিএীর প-র .৮৪ (চুরাশি) শতক জমি বাবদ পৃথক বন্ট-নর ডিএনী পাই-ত পা-র। কিন্তু বিজ্ঞ নিম্ন আদালত বাদী পক্ষ-ক ১.১৪ শতক জমি বাবদ ডিএনী প্রদান করিয়া ভুল করিয়া-ছেন।

তৎকারণে বিজ্ঞ নিম্ন আদাল-তর ডিএলি রদ রহিত এম-ম সং-শাধন যোগ্য ।
বাদী আপীলকারী পক্ষ তাহা-দর দাবী প্রমান করি-ত সমর্থ হয় নাই বিধায়
আপীলটি মঞ্জুর যোগ্য নয় আপীলটি খারিজ-যাগ্য। এদি-ক ১-৩নং বিবাদী
রেসপন-ডন্ট পক্ষ ধলুর ওয়ারিশী দাবী করিয়া যে এনাস অব-জকশন দাখিল
করিয়া-ছন উহার দাবী প্রমাণিত হইয়া-ছ বিধায় এন্স অব-জকশন
মঞ্জুর-যাগ্য।”

After examining the above two judgments passed by the Courts below, the plaintiff-petitioners could successfully prove the entitlement upon the land measuring .84 acres of out of total land measuring 3.02 acres in C.S. khatian Nos.72 and 73 of Mouza Goalkati, District-Jhalakati,

In view of the above, I find the judgment and decree passed by the learned appellate Court below is based upon the consideration of the evidence and the prevailing law. On the other hand, the learned trial Court committed an error of law non-considering the evidence adduced and produced by the parties, therefore, came to a wrongful conclusion to allocate saham of 1.14 acres and also failed to pass decree in a preliminary form, therefore, the judgment of the trial Court is hereby declared unlawful. On the basis of the above discussions, I am not inclined to interfere into the judgment of the appellate Court below. In view of the above findings of the judgment and decree passed by the learned appellate Court below regarding the land measuring .84 in C.S. khatian No.72 Mouza Goalkati, Jhalakati is hereby upheld.

Accordingly, I do not find merit in this Rule.

In the result, the Rule is discharged.

The office is directed to communicate this judgment and order and also directed to send down the Lower Courts Records at once.